

26NNCV03848 26NNCV03848

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C08%2F21%2F2026

Source SHA-256: b2745ecfe3aa6b754c6a9e9e8d324eab123b64d404c0d4810fb7d9101cbcc223

Case Number: 26NNCV03848 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: August 21, 2026

Case No: 26NNCV03848 Trial Date: Not yet set

Case Name: Highview Holdings LLC v. Bu, et al.

MOTION FOR PRELIMINARY INJUNCTION

[CCP §§ 526, 527]

Moving Party: Plaintiff, Highview Holdings LLC

Responding Party: Defendants, Ningning Li and Le Bu [Unopposed]

Deficiencies to Note:

No service on Defendants. Plaintiff served Defendants with the summons and Complaint via publication, but the Complaint does not request injunctive relief and the motion for preliminary injunction was not served in accordance with CRC rule 3.1150.

RELIEF REQUESTED:

An order enjoining Defendants from selling the real property located at 325 West Bellevue Drive, Pasadena, California 91105, APN 5713-032-009.

CAUSES OF ACTION: from Complaint

- 1) Quiet Title
- 2) Cancellation of Instruments
- 3) Fraud and Deceit
- 4) Civil Conspiracy
- 5) Imposition of Constructive Trust
- 6) Conversion
- 7) Violation of Penal Code § 496—Receiving Stolen Property
- 8) Declaratory Relief

SUMMARY OF FACTS:

Highview Holdings, LLC ("Plaintiff" of "Highview") is the lawful owner of real property located at 325 West Bellevue Drive in Pasadena, California 91105 (the "Property"). Plaintiff alleges that on March 10, 2026, defendant Ningning Li ("Li") filed a false and fraudulent Statement of Information with the California Secretary of State, falsely designating Li as the manager of Highview Holdings, LLC. The Complaint alleges that Li executed one or more instruments, including a grant deed or transfer deed, purporting to convey the Property from Highview to defendant Le Bu ("Bu"). The deed was recorded on April 23, 2026.

The Complaint alleges that the purported transaction from Li to Bu was conducted entirely off the open market, without any public listing, competitive bidding process, independent appraisal, real estate broker representation, or any of the customary safeguards that attend legitimate arm's-length real property transactions. In addition, the purported purchase price paid by Bu was approximately \$4,800,000, \$300,000 less than Plaintiff had paid for the Property in August 2025.

Plaintiff first discovered that the Property had been wrongfully conveyed on May 13, 2026, when Plaintiff's representatives noticed that the Property had been publicly listed for sale for \$5,280,000. Prior to that date, Plaintiff had no knowledge of, and had not consented to, any conveyance, listing, or other disposition of the Property.

ANALYSIS:

"No preliminary injunction shall be granted without notice to the opposing party." (CCP § 527, subd. (a).)

"A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint." (CRC rule 3.1150, subd. (a).)

"The OSC and TRO must be stated separately, with the OSC stated first. The restraining language sought in an OSC and a TRO must be separately stated in the OSC and the TRO and may not be incorporated by reference. The OSC must describe the injunction to be sought at the hearing. The TRO must describe the activities to be enjoined pending the hearing. A proposed OSC must contain blank spaces for the time and manner of service on responding parties, the date on which the proof of service must be delivered to the court hearing the OSC, a briefing schedule, and, if applicable, the expiration date of the TRO." (CRC rule 3.1150, subd. (c).)

Here, Plaintiff completed service of the summons and Complaint by publication as of July 3, 2026. (7/02/2026 Proof of Publication.) Defendants have not yet appeared in this action. Accordingly, Plaintiff must give notice of the request for a preliminary injunction by obtaining and serving an order to show cause in the same manner as the summons and Complaint, which here, means service by publication. (CRC rule 3.1150, subd. (a).)

Thus, the motion is DENIED, without prejudice to Plaintiff refiling the motion upon complying with the requirements of CRC, rule 3.1150.

RULING:

Plaintiff Highview Holdings, LLC's Motion for Preliminary Injunction is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.